



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

MAY 25 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9305
(FOURTH REVISION)

EXPIRATION DATE: April 30, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Navajo Pipe Line Company
(Former Grantee: ARCO Pipe Line Company)
Houston, Texas
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the use of a non-DOT specification container for the shipment of Class 3 and Combustible liquids material identified in paragraph 6 below. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.241 and 173.243.
5. BASIS: This exemption is based on the application of ARCO Pipe Line Company dated May 10, 2000, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Combustible liquid, n.o.s.	combus- tible	NA1993	III
Flammable liquid, n.o.s.	3	UN1993	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification container described as mechanical displacement meter prover mounted on a truck chassis. The meter prover has a nominal water capacity of 120 gallons and is designed to ANSI Standard B 31.4. The pressure vessel is made up of 8.625 inches outside diameter seamless steel pipe, ASTM SA 53, schedule 40, grade B or equivalent. Pipe assembly is by 600 lb. ASA welded flange joints. The maximum services pressure is 275 psig. Pressure relief devices are not required. The motor vehicle also contains a 40 gallon sump tank located below the truck bed. The sump tank is equivalent to DOT Specification steel drums authorized for flammable liquids. The prover must be as shown on ARCO Pipe Line Company drawing 6.305.105 dated March 2, 1984 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). In addition:

1. The bumper for the truck must meet the requirements of §§ 178.340-8(b) and 393.86.
2. During transportation, the pressure in the prover must not exceed 25 percent of the maximum serve pressure.
3. NO NEW CONSTRUCTION IS AUTHORIZED.

b. TESTING -

1. Each prover must be visually reinspected once a year and retested at least once every 5 years at not

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less than 75 percent of the prover's design pressure in accordance with § 173.32(e). Only meter provers requalified after May 31, 2000 are required to be in conformance with § 173.32(e).

2. The 40 gallon sump tank must be visually reinspected once a year and pressure retested at least once every five years at a minimum pressure of 15 psig.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

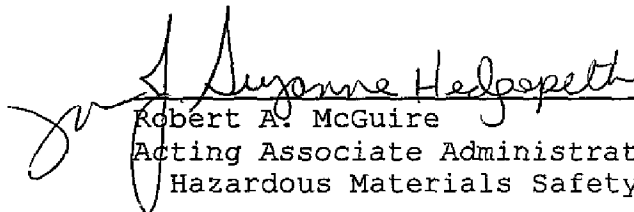
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption
are permitted. Any alteration of this exemption is
prohibited.

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Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, Washington, DC
20590-0001, Attention: Records Center, 202-366-5046.

PO: sdc